

Parteek (Minor) Through His Father Sh. ... vs Dr. Suresh Chander Kalra & Anr. on 25 May, 2017

NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION NEW DELHI REVISION P
R/o H.No- 766, Sector - 18 Housing Board Colony Jagadhri Yamuna Nagar Haryana
Rikshaw Chowk , Model Town Yamuna Nagar Haryana 2. United Insurance Company Ltd. thr

BEFORE: HON'BLE MR. DR. B.C. GUPTA, PRESIDING MEMBER HON'BLE MR. DR. S.M. KANTIKAR, MEMBER
For the Petitioner : Mr. Balkar Singh, Advocate For the Respondent : For the Respondent No. 1 :

Mr. K. G. Sharma, Advocate :

Mr. Naveen Kumar, Advocate Dated : 25 May 2017 ORDER DR. S. M. KANTIKAR, MEMBER

1. This revision petition has been filed under Section 21(b) of the Consumer Protection Act, 1986 against the order dated 8.8.2011 passed by the Delhi State Consumer Disputes Redressal Commission, whereby the appeal filed by the complainant was dismissed and the order of the District Forum was upheld.

2. The facts relevant for the disposal of the case are that the petitioner/complainant, Master Prateek suffered injury in his right eye on 28.10.2007 with a stick and approached OP 1/Dr. Suresh Chander Kalra for some difficulty in vision of his right eye and was unable to read. OP 1 after treatment assured that there will be cure after completion of the treatment and accordingly advised the complainant for weekly follow up for next six months. However, the complainant approached OP 1 only on 12-05-2009. At that time, the OP 1 upon examination of the child noted that there was a macular hole developed in the right eye of the child. Therefore, he advised the complainant to get eye sight checked from Mirchia Laser Eye Clinic, Sector 22-A, Chandigarh but the patient visited eye centre in PGI Chandigarh, which revealed that the retina of right eye was already torn off and there was a macular hole; accordingly, advised for operation of right eye. The patient was operated at PGI Chandigarh on his right eye but the vision could not be restored. Hence, it was alleged that due to lack of proper treatment from OP and delay in reference, the patient lost his right eye and it was a case of medical negligence. Hence, the complainant filed the complaint before the District Consumer Disputes Redressal Commission, Yamuna Nagar.

3. The District Forum dismissed the complaint. Thereafter, the appeal filed by the complainant was also dismissed by the State Commission. Hence, this revision petition.

4. We have heard learned counsel for the parties. Learned counsel for the complainant vehemently argued that due to the negligence of OP, the child lost sight of the right eye. After treatment of injury, OP 1 assured that everything will be alright and asked for regular weekly follow up treatment for six months. Every time, OP 1 used to assure that there was no problem. But due to the persistent problem, the OP referred the patient to Mirchiya Laser Eye Clinic. The patient approached Ophthalmology department in PGI, Chandigarh wherein he was again operated on 18.8.2009. The complainant incurred expenditure of more than Rs. 50,000/-.

5. Learned counsel on behalf of OP argued that the patient, Prateek was brought by his father on 29.10.2007 after almost 24 hours of the injury in the right eye and not on 28.10.2007, as alleged. The OP examined the patient completely and found that there was a small Tenoconjunctival tear (1.1 x 0.5 cm) by the blunt injury in the right eye. He performed fundus examination by direct and indirect Ophthalmoscopy with scleral indentation. It was normal. The vision was also normal in both the eyes. The Tenoconjunctival tear was temporal to cornea. It was sutured with six zero vikryl in the operation theatre. It was performed with due consent and under local anaesthesia. At the time of discharge, OP had advised weekly follow up for six months, which was acknowledged by the complainant but the patient did not follow the instructions. Mr. Ramesh Kumar, complainant, brought his son on 12.5.2009 i.e. almost after 1 ½ years of initial treatment. At that instance, the OP diagnosed Macular Hole. The patient developed macular hole and accordingly, he immediately referred the child to Retina Specialist at Chandigarh.

6. After our thoughtful consideration, we are of the view that the OP 1 gave proper treatment in time and advised properly for follow ups, the complainant had good vision i.e. 6/6 P in right eye after the suturing of the eye on 29.10.2007. No assurance had been given for future as far as eye sight is concerned in injured eye as any complications of injury can appear at any date later on. That is why longer follow-ups were advised as also acknowledged by the father of the patient but the complainant did not follow the instructions. After almost 1 ½ years of initial injury, the patient approached OP 1 with the complaint of sudden diminution of vision and it was diagnosed as macular hole in the right eye. Hence, OP referred the patient to the Retina Specialist after further management.

7. Thus, it is clear that the complainant himself was negligent in not following the treatment instructions of the doctor. His own carelessness caused delay in seeking treatment.

8. We have perused the literature from the Standard Text Books, viz. Dule elder and Parson's, which quote that after a considerable long time, macular hole develops in the blunt injured eye. Even the medical record of PGI, Chandigarh clearly mention in the discharge slip that "H/o Trauma Right Eye with stick 1 ½ years back c/o decrease vision right eye 1 ½ years but more since two weeks."

This clearly proves that macular hole was developed two weeks back before 12.05.2009.

9. On the basis of foregoing discussion, we do not find any negligence on the part of OP 1 during the treatment of injured right eye of the patient. There is no need to interfere in the well-reasoned orders of fora below. There is no merit in the instant revision petition, hence, it is dismissed.

..... DR. B.C. GUPTA PRESIDING MEMBER DR. S.M. KANTIKAR
MEMBER